

Final Memorandum of Understanding

Memorandum of Understanding
Flanagan Family 321 Trust

Trustee Succession, Interest Redistribution, and Administrative Update

Trust: Flanagan Family 321 Trust
Settlor: Dorothy E. Flanagan (deceased), Ellsworth, Maine
Date of Trust Agreement: 2005
Type: Irrevocable
Property: 321 Phillips Way, Ellsworth, ME 04605 (Branch Lake)
Hancock County, Maine
Deed Reference: TR 31 PG 07 PC 10
Date of this Memorandum: _____, 2026

I. Purpose and Authority

This Memorandum of Understanding ("MOU") formalizes all actions taken with respect to the Flanagan Family 321 Trust.

- A. The resignation of the initial Co-Trustees.
- B. The election and acceptance of Successor Co-Trustees.
- C. The recording of an Affidavit of Successor Trustee.
- D. The transfer of Trust banking and insurance accounts.
- E. The modification of beneficial interests pursuant to a Non-Judicial Settlement Agreement under 18-B M.R.S. Section 111.

The administrative actions (A through D) were taken under the authority of Article II of the Trust Agreement.

The substantive modifications (E) were executed by all interested persons pursuant to a Non-Judicial Settlement Agreement.

II. Resignation of Initial Co-Trustees

The initial Co-Trustees named in Article 10.1 of the Trust Agreement have resigned:

Jane E Birckhead -- Resignation dated _____
Elizabeth (Betsy) Young -- Resignation dated _____

Each resignation was made pursuant to Article 10.2 of the Trust Agreement and 18-B M.R.S. Sec.

III. Election of Successor Co-Trustees

Pursuant to Article 10.2 of the Trust Agreement, a vote of the beneficiaries was conducted on

1. Mary Jean Foss
2. John M. Flanagan
3. Jane E Birckhead
4. Elizabeth (Betsy) Young
5. Christopher J. Flanagan

Result: A majority of the beneficiaries voted in favor of electing John M. Flanagan and Christopher J. Flanagan.

Votes in Favor: _____
Votes Opposed: _____
Votes Abstain: _____

Both Successor Co-Trustees accepted their appointment and agreed to be bound by all terms of the Trust Agreement.

IV. Governance

Pursuant to Article 8.2 of the Trust Agreement, while only two (2) Trustees are serving, the Trustees shall

V. Legal Title and Recording

An Affidavit of Successor Trustee was executed by John M. Flanagan and Christopher J. Flanagan.

Date of Recording: _____
Book: _____ Page: _____

This recording serves as public notice of the change in Trustees and confirms the authority of the Successor Trustees.

VI. Administrative Transfer of Accounts

The Successor Co-Trustees have completed the following administrative transfers:

Banking: All Trust accounts at Camden National Bank have been transferred to the names of the Successor Co-Trustees.

Date completed: _____

Insurance: MMG Insurance Policy DW 0323180 has been updated to
name the Successor Co-Trustees as the primary insured fiduciaries.

Date completed: _____

VII. Modification of Beneficial Interests

Pursuant to a Non-Judicial Settlement Agreement dated _____, 2026, executed by

A. Betsy Young Interest Forfeiture

Elizabeth (Betsy) Young voluntarily forfeited her entire beneficial interest in the Trust in

Release from all financial obligations under Article 5.3.

A lifetime use right of one (1) aggregate week of summer use per
calendar year for herself, Edward Young, and Jack Young.

This forfeiture includes all voting rights, all claims to sale proceeds, and all rights under

See Non-Judicial Settlement Agreement, Section IV, and Exhibit A.

B. Transfer of Jean Foss's Interest

Mary Jean Foss transferred her entire 25% beneficial interest to her children:

Jennifer Yommer: 12.5%

Martha Foss: 12.5%

Jean relinquished all beneficial interest, voting rights, and financial obligations.

See Non-Judicial Settlement Agreement, Section V, and Exhibit B.

C. Transfer of Jane E Birckhead's Interest

Jane E Birckhead transferred her entire 25% beneficial interest to Joseph M Birckhead after

Joseph M Birckhead: 25.0%

Diana E Birckhead: 0.0%

Jane E Birckhead relinquished all beneficial interest, voting rights, and financial obligations.

See Non-Judicial Settlement Agreement, Section VI, and Exhibit C.

D. Spousal Rights Clarification

The parties clarified the succession of beneficial interests with respect to spouses, supple

See Non-Judicial Settlement Agreement, Section VII, and Exhibit D.

VIII. Final Ownership Structure

Following all actions described in this MOU, the beneficial interests in the Flanagan Family

Beneficiary	Interest	Voting
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John M. Flanagan	25.0%	Yes
Christopher J. Flanagan	25.0%	Yes
Jennifer Yommer	12.5%	Yes
Martha Foss	12.5%	Yes
Joseph M Birckhead	25.0%	Yes
-----	-----	-----
Total	100.0%	

Lifetime Use Right Only (No Interest, No Vote, No Expenses):

Elizabeth (Betsy) Young

Edward Young

Jack Young

-- One (1) aggregate week of summer use per year

No Beneficial Interest (Transferred or Forfeited):

Mary Jean Foss

Jane E Birckhead

Diana E Birckhead

IX. Successor Co-Trustees

John M. Flanagan

Address: -----

Phone: -----

Email: -----

Christopher J. Flanagan

Address: -----

Phone: -----

Email: -----

X. Incorporated Documents

The following documents are incorporated into this MOU by reference and form part of the contract.

Phase 1 -- Trustee Resignations

1. Resignation of Trustee -- Jane E Birckhead
2. Resignation of Trustee -- Elizabeth (Betsy) Young

Phase 2 -- Beneficiary Vote

3. Notice of Beneficiary Vote
4. Record of Beneficiary Vote for Election of Successor Trustees

Phase 3 -- Recording and Administrative Transfer

5. Affidavit of Successor Trustee (recorded at Hancock County Registry of Deeds)
6. Bank Authorization Letter -- Camden National Bank
7. Insurance Update Request -- MMG Insurance (Policy DW 0323180)

Phase 4 -- Beneficial Interest Modifications

8. Non-Judicial Settlement Agreement (18-B M.R.S. Section 111)
9. Exhibit A: Betsy Young Forfeiture and Lifetime Use Right
10. Exhibit B: Transfer of Interest -- Jean Foss to Jennifer Yommer and Martha Foss
11. Exhibit C: Transfer of Interest -- Jane E Birckhead to Joseph M Birckhead with Diana E Birckhead forfeiture
12. Exhibit D: Spousal Rights Clarification

Original Trust Document

13. Flanagan Family 321 Trust Agreement (2005), Settlor: Dorothy E. Flanagan

XI. Governing Law

This MOU and all incorporated documents shall be governed by the laws of the State of Maine.

XII. Severability

If any provision of this MOU or any incorporated document is found to be invalid or unenforceable, the remaining provisions shall survive.

XIII. Acknowledgement and Signatures

Each undersigned party acknowledges that:

- a. They have read and understand the terms of this MOU.
- b. They have had the opportunity to consult with independent legal counsel.
- c. They execute this MOU voluntarily.
- d. All actions described herein have been completed as stated.

Successor Co-Trustees:

John M. Flanagan, Successor Co-Trustee

Signature: _____

Date: _____

Christopher J. Flanagan, Successor Co-Trustee

Signature: _____

Date: _____

Active Beneficiaries:

John M. Flanagan

Signature: _____

Date: _____

Christopher J. Flanagan

Signature: _____

Date: _____

Jennifer Yommer

Signature: _____

Date: _____

Martha Foss

Signature: _____

Date: _____

Joseph M Birckhead

Signature: _____

Date: _____

Former Beneficiaries / Transferors / Forfeiting Parties:

Mary Jean Foss

Signature: _____

Date: _____

Jane E Birckhead

Signature: _____

Date: _____

Elizabeth (Betsy) Young

Signature: _____

Date: _____

Diana E Birckhead

Signature: _____

Date: _____

Lifetime Use Right Holders:

Edward Young

Signature: _____

Date: _____

Jack Young

Signature: _____

Date: _____

Notary Acknowledgement

STATE OF _____

COUNTY OF _____

On _____, 2026, before me, _____ (Notary Public), pers

I certify under PENALTY OF PERJURY under the laws of the State of _____ that

WITNESS my hand and official seal.

Signature: _____ (Seal)

Print Name: _____

My Commission Expires: _____